

Amendments, Emergency and the Uniform Civil Code - The Foundation Track

Chapter F1.12 — From Zero: How the Constitution Changes, and What Happens When It Is Suspended

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NOTE · HOW TO USE THIS DOCUMENT

The chapter about constitutional change and constitutional breakdown. It takes Article 368 and the three amendment procedures - simple majority, special majority, and special majority with ratification by half the States - and sets out precisely which provisions fall under each, since that classification is the most examined element. It then works the amendments that matter most in a single sequence, and connects them to the basic structure doctrine already established in F1.7. The second half covers the three Emergencies: National Emergency under Article 352 with the 44th Amendment's safeguards, President's Rule under Article 356 with the SR Bommai constraints already met in F1.6, and Financial Emergency under Article 360 which has never been proclaimed. It sets out exactly which rights are suspended and which survive under Articles 358 and 359, including the 44th Amendment's absolute protection of Articles 20 and 21. It closes on Article 44 and the Uniform Civil Code as a Directive Principle, with the honest statement of the arguments on both sides and the current position. Study time 3 hours.

This is the FOUNDATION layer. Article 368's procedures, the Emergency provisions and the case law are settled. The list of amendments is selective, covering those with examination value. Statements on the Uniform Civil Code describe the constitutional position and the competing arguments; they are not political advocacy, and where a matter is under active legislative consideration it is marked as such.

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0. Change and Breakdown

A constitution that cannot be amended is a straitjacket. One that can be amended without limit is not a constitution at all.

WHY THIS EXISTS · THE PROBLEM ARTICLE 368 HAS TO SOLVE

Every written constitution faces the same dilemma.

If amendment is too EASY, the constitution offers no real protection - a temporary majority can remove any safeguard it finds inconvenient, and the document becomes an ordinary statute with a grander title.

If amendment is too HARD, the constitution cannot adapt. Social change outpaces it, and pressure that should be released through amendment instead builds up against the whole constitutional order.

India's answer is a GRADED procedure. Not one amendment process but **three**, with the difficulty matched to the importance of the provision being changed. **Provisions touching the federal structure are hardest to change; procedural details are easiest.** That graded design is the single most examinable feature of Article 368, and Session 1 works it out.

And there is a fourth, judicially created limit, which you already know from F1.7: the BASIC STRUCTURE DOCTRINE. After **Kesavananda Bharati (1973)**, Parliament may amend any part of the Constitution but **may not destroy or alter its basic structure**. So the real answer to "how hard is it to amend the Indian Constitution?" is: **three degrees of procedural difficulty, plus one substantive limit the courts enforce.**

The second half of this chapter deals with the opposite situation - not change but BREAKDOWN. The Emergency provisions allow the normal constitutional order to be suspended when the State faces war, armed rebellion, the collapse of a State government, or a threat to financial stability. **These are the most dangerous provisions in the Constitution**, and the history of their use - particularly the **1975-77 Emergency** - is the reason the 44th Amendment tightened them so substantially.

The connecting idea between the two halves is this: the amendment provisions and the emergency provisions are both about the Constitution under strain. One changes it deliberately; the other suspends it temporarily. And in both cases, the 42nd Amendment expanded the power and the 44th Amendment reined it back in.

STUDY SESSION · CHAPTER F1.12 - THE FIVE SESSIONS

- 1 **Session 1 - Article 368 and the three amendment procedures** (Section 1)
- 2 **Session 2 - The amendments that matter, in sequence** (Section 2)
- 3 **Session 3 - National Emergency under Article 352** (Section 3)
- 4 **Session 4 - President's Rule under Article 356, and Financial Emergency** (Section 4)
- 5 **Session 5 - Article 44 and the Uniform Civil Code** (Section 5)

Then **42 graded questions**. Budget **four sessions**, about **a day and a half**.

1. Session 1 - The Three Amendment Procedures



MUST MASTER · ARTICLE 368 - AND THE THREE ROUTES

Article 368 is headed "**Power of Parliament to amend the Constitution and procedure therefor**". The essentials of the procedure:

- 1 An amendment is initiated **only by the introduction of a BILL IN EITHER HOUSE of Parliament**
- 2 **No prior recommendation of the President is required** (contrast a Money Bill) - **and this is a genuine trap, because candidates assume otherwise**
- 3 **A Constitution Amendment Bill may be introduced by a PRIVATE MEMBER**, not only by a Minister
- 4 **There is NO PROVISION FOR A JOINT SITTING** on a Constitution Amendment Bill - each House must pass it separately by the required majority. **This is the F1.5 point restated from the other side**
- 5 Once passed by both Houses, and ratified by the States where required, **the President SHALL GIVE HIS ASSENT** - the **24th Amendment 1971** made assent **obligatory**, removing any discretion

THE THREE PROCEDURES, and this classification is the most examined element of the chapter:

PROCEDURE 1 - BY SIMPLE MAJORITY of Parliament. These changes are made by ordinary legislative process and are **technically NOT amendments under Article 368 at all** - which is why they do not count in the numbering of Constitutional Amendment Acts. They include:

- 1 **Admission or establishment of new States (Article 2)** and **formation of new States and alteration of areas, boundaries or names (Article 3)** - the F1.2 and F1.8 point about destructible States
- 2 Creation or abolition of **Legislative Councils** in States (Article 169)
- 3 **Citizenship** - acquisition and termination
- 4 Salaries and allowances of MPs, Ministers, Supreme Court and High Court judges
- 5 Quorum in Parliament, rules of procedure, privileges
- 6 **Use of English in Parliament**
- 7 Number of **puisne judges** in the Supreme Court
- 8 Conferment of more jurisdiction on the Supreme Court
- 9 **Fifth and Sixth Schedules** - Scheduled and Tribal Areas
- 10 Elections to Parliament and State Legislatures
- 11 Delimitation of constituencies
- 12 Union Territories

PROCEDURE 2 - BY SPECIAL MAJORITY of Parliament. The general rule for most of the Constitution. Requires, **in EACH House separately**:

- 1 a **MAJORITY OF THE TOTAL MEMBERSHIP** of that House, **AND**
- 2 a majority of **NOT LESS THAN TWO-THIRDS of the members PRESENT AND VOTING**

Both conditions must be satisfied, which is why it is called a special majority. This route covers **Fundamental Rights, Directive Principles**, and all provisions not falling in Procedure 1 or 3.

PROCEDURE 3 - BY SPECIAL MAJORITY PLUS RATIFICATION BY HALF THE STATES. The hardest route, reserved for provisions touching the **FEDERAL STRUCTURE**. Requires the special majority in each House **AND ratification by the Legislatures of NOT LESS THAN ONE-HALF OF THE STATES**, by **SIMPLE MAJORITY**. The provisions are:

- 1 **Election of the President** (Articles 54 and 55)
 - 2 **Extent of the executive power of the Union** (Article 73) and **of the States** (Article 162)
 - 3 **The Supreme Court and High Courts**
 - 4 **Distribution of legislative powers between the Union and the States**
 - 5 **Any of the LISTS in the SEVENTH SCHEDULE**
 - 6 **Representation of States in Parliament**
 - 7 **Article 368 itself**
 - 8 **Goods and Services Tax Council (Article 279A)**, added by the 101st Amendment
- Three points about ratification that are regularly tested:**
- 1 **The requirement is HALF the States, not two-thirds** - so **at least 15 of 29** on the commonly cited count. **Do not confuse the two-thirds inside Parliament with the one-half among the States**
 - 2 **State ratification is by SIMPLE MAJORITY** in the State Legislature, not a special majority
 - 3 **There is NO TIME LIMIT** within which States must ratify, and **a State cannot withdraw its ratification** once given
 - 4 **Ratification is required BEFORE the Bill is presented to the President for assent**
- The memory device that ties Procedure 3 together: everything in it is something a State could reasonably object to being changed without its consent - who elects the President, how power is divided, the courts that adjudicate between Union and States, State representation in Parliament, and the amending power itself.**

COMMON UPSC TRAP · THE FOUR TRAPS IN ARTICLE 368

- 1 **"A Constitution Amendment Bill requires the President's prior recommendation."** **FALSE.** No prior recommendation is needed. Money Bills need it; amendment Bills do not
 - 2 **"A joint sitting can resolve a deadlock on a Constitution Amendment Bill."** **FALSE.** There is no joint sitting under Article 368 - each House must pass it separately. If one House refuses, the Bill fails
 - 3 **"Ratification requires two-thirds of the States."** **FALSE.** It requires **one-half**, and by **simple majority** in each ratifying State
 - 4 **"Changing a State's name or boundary requires a constitutional amendment by special majority."** **FALSE.** Articles 2 and 3 changes are made by **SIMPLE MAJORITY** - which is precisely what makes the States "destructible", the F1.8 point
- And the substantive limit, from F1.7: even a validly passed amendment can be struck down if it destroys the BASIC STRUCTURE. Kesavananda (1973) established it; Minerva Mills (1980) struck down Article 368(4) and (5) which the 42nd Amendment had inserted to exclude judicial review of amendments; and the NJAC case (2015) struck down the 99th Amendment. So Parliament's procedural compliance is necessary but not sufficient.**

CHECK YOURSELF · SESSION 1

- 1 How is an amendment initiated? Is the President's prior recommendation needed?
- 2 Can a private member introduce a Constitution Amendment Bill?
- 3 Is a joint sitting available? Which amendment made Presidential assent obligatory?
- 4 Name eight matters amendable by SIMPLE majority
- 5 State the special majority precisely - both limbs
- 6 Name eight matters requiring ratification by the States
- 7 What fraction of States must ratify, by what majority, and within what time?
- 8 Can a State withdraw its ratification?
- 9 State the four traps and the substantive limit

2. Session 2 - The Amendments That Matter



2.1 The amendments most often examined, in sequence

Amdt	Year	What it did
1st	1951	Added Ninth Schedule to protect land reform laws from judicial review; added Art 15(4) and restrictions to Art 19 - a response to Champakam Dorairajan and early land-reform litigation
7th	1956	Reorganisation of States on the States Reorganisation Act 1956 ; permitted a common High Court for two or more States and a Governor for two or more States
24th	1971	Asserted Parliament's power to amend any part including Part III; made Presidential assent to an amendment OBLIGATORY - a response to Golaknath
25th	1971	Inserted Article 31C , protecting laws giving effect to Articles 39(b) and (c) from Articles 14 and 19 - the F1.4 point
42nd	1976	"MINI-CONSTITUTION" . Added SOCIALIST, SECULAR and INTEGRITY to the Preamble; added FUNDAMENTAL DUTIES (Part IVA, Art 51A) ; moved five subjects from State to Concurrent List ; extended Lok Sabha and Assembly terms to 6 years ; froze Lok Sabha seats on the 1971 census ; inserted Art 368(4) and (5) to exclude judicial review of amendments
44th	1978	THE CORRECTIVE . Restored Lok Sabha and Assembly terms to 5 years ; replaced "internal disturbance" with "ARMED REBELLION" in Art 352; required the Cabinet's WRITTEN recommendation for a National Emergency; protected Articles 20 and 21 from suspension; deleted the RIGHT TO PROPERTY from Part III, making it Art 300A , a legal right; added the reconsideration proviso to Art 74
52nd	1985	ANTI-DEFECTION LAW - added the TENTH SCHEDULE
61st	1989	Reduced the voting age from 21 to 18
73rd	1992	PANCHAYATS - Part IX and the Eleventh Schedule (29 subjects)
74th	1992	MUNICIPALITIES - Part IXA and the Twelfth Schedule (18 subjects)
80th	2000	Broadened the divisible pool to a share of all Union taxes; omitted Art 272 - the F1.10 point
86th	2002	Made EDUCATION a Fundamental Right - Art 21A ; added Art 45 (early childhood care) and the Fundamental Duty in Art 51A(k)
91st	2003	Capped the Council of Ministers at 15 per cent of the House, with a minimum of 12 in States - the F1.6 point
97th	2011	CO-OPERATIVE SOCIETIES - added Part IXB and the Fundamental Right in Art 19(1)(c) to form co-operative societies
99th	2014	Created the NJAC - STRUCK DOWN in 2015
101st	2016	GOODS AND SERVICES TAX - inserted Art 246A, 269A and the GST Council under Art 279A
102nd	2018	Constitutional status for the National Commission for Backward Classes (Art 338B) ; inserted Art 342A
103rd	2019	10 per cent reservation for Economically Weaker Sections - Arts 15(6) and 16(6)

Amdt	Year	What it did
104th	2020	Extended SC/ST reservation in legislatures by ten years; abolished the nomination of Anglo-Indians - the F1.5 point
105th	2021	Restored the States' power to identify their own backward classes - correcting the 102nd
106th	2023	WOMEN'S RESERVATION - one-third of seats in the Lok Sabha and State Legislative Assemblies. Implementation follows a census and delimitation exercise

MUST MASTER · THE 42ND AND 44TH AS A MATCHED PAIR

THE 42nd AND 44th AS A PAIR is the single most valuable framing in this session. The 42nd Amendment was passed **during** the 1975-77 Emergency by a Parliament whose own term it had extended, and it expanded executive and parliamentary power in almost every direction. **The 44th Amendment was passed by the Government that followed, and its purpose was explicitly to make a repetition harder.**

Learn them as a matched pair of changes:

- 1 Terms: **42nd extended to 6 years → 44th restored 5 years**
- 2 Emergency ground: **42nd left "internal disturbance" → 44th replaced it with "ARMED REBELLION"**
- 3 Emergency procedure: **44th added the Cabinet's WRITTEN recommendation**
- 4 Rights in Emergency: **44th protected ARTICLES 20 AND 21 absolutely**
- 5 Judicial review of amendments: **42nd inserted Art 368(4) and (5) → Minerva Mills struck them down**
- 6 Presidential discretion: **44th added the reconsideration proviso to Art 74**

That pairing answers a large family of questions, and it also explains why the 42nd is called the "mini-Constitution" while the 44th is called the corrective.

KNOW · THE NINTH SCHEDULE AND THE TENTH SCHEDULE

Two Schedules added by amendment deserve separate note.

THE NINTH SCHEDULE - added by the 1st Amendment 1951. Laws placed in it were intended to be **immune from judicial review** on the ground of violating Fundamental Rights, by virtue of **Article 31B**. It was created to protect land-reform legislation from challenge.

But in IR Coelho v State of Tamil Nadu (2007) the Supreme Court held that laws placed in the Ninth Schedule AFTER 24 APRIL 1973 - the date of the Kesavananda judgment - are OPEN TO CHALLENGE if they violate the BASIC STRUCTURE. So the Ninth Schedule is **no longer an absolute shield**. Note the date: 24 April 1973, the same date Waman Rao used in F1.7.

THE TENTH SCHEDULE - added by the 52nd Amendment 1985 - the ANTI-DEFECTION LAW.

- 1 A member of a House **incurs disqualification** if he **voluntarily gives up membership** of his party, or **votes or abstains contrary to a direction** of his party (subject to prior permission or condonation within 15 days)
- 2 An **independent** member is disqualified if he **joins any political party** after election
- 3 A **nominated** member is disqualified if he joins a party **after six months** of taking his seat
- 4 **EXCEPTION - MERGER:** disqualification does not apply where **not less than TWO-THIRDS of the members of the legislature party agree to a merger. The original "split" exception at one-third was DELETED by the 91st Amendment 2003**, which is a frequently tested change
- 5 **The SPEAKER or CHAIRMAN decides** the question of disqualification
- 6 **In Kihoto Hollohan v Zachillhu (1992)** the Supreme Court held that the Speaker's decision is **subject to JUDICIAL REVIEW**, though the finality clause had purported to exclude it - the F1.7 principle again

The 91st Amendment's deletion of the one-third split exception is the key reform: previously a group of one-third could split without disqualification, which encouraged engineered splits; now only a **two-thirds merger** is protected.

CHECK YOURSELF · SESSION 2

- 1 What did the 1st Amendment add, and in response to what?
- 2 Name six changes made by the 42nd Amendment
- 3 Name six changes made by the 44th Amendment, pairing each with the 42nd where applicable
- 4 Why is the 42nd called the mini-Constitution and the 44th the corrective?
- 5 Which amendment made education a Fundamental Right, and under which article?
- 6 Which amendment deleted the right to property from Part III, and what did it become?
- 7 Which amendments dealt with the NCBC and the correction of its centralising effect?
- 8 What did IR Coelho 2007 decide about the Ninth Schedule, and from what date?
- 9 State the Tenth Schedule's grounds of disqualification and the merger exception
- 10 What did the 91st Amendment delete, and what did Kihoto Hollohan decide?

3. Session 3 - National Emergency, Article 352



MUST MASTER · ARTICLE 352 - GROUNDS, PROCEDURE AND THE 44TH AMENDMENT SAFEGUARDS

GROUND. The President may proclaim a National Emergency if he is satisfied that a **grave emergency exists whereby the security of India or any part of its territory is threatened**, whether by:

- 1 **WAR**
- 2 **EXTERNAL AGGRESSION**
- 3 **ARMED REBELLION**

The 44th Amendment 1978 replaced "INTERNAL DISTURBANCE" with "ARMED REBELLION" - the single most important change in this session. "Internal disturbance" was the ground used in 1975, and it was so vague that almost any political unrest could satisfy it. "Armed rebellion" is a much higher and more objective threshold.

- 1 Where the ground is **war or external aggression**, it is called an **EXTERNAL EMERGENCY**
- 2 Where the ground is **armed rebellion**, it is called an **INTERNAL EMERGENCY**
- 3 A proclamation may be made **in respect of the whole of India or only a PART of its territory** - this was made possible by the **42nd Amendment**
- 4 A proclamation may be made **BEFORE the actual occurrence** of war, aggression or rebellion, if the President is satisfied there is **imminent danger** of it

PROCEDURE, with the 44th Amendment safeguards:

- 1 The proclamation requires the **WRITTEN RECOMMENDATION OF THE CABINET** - that is, of the Council of Ministers consisting of the Prime Minister and other Ministers of Cabinet rank. **This is the 44th Amendment's key procedural safeguard, and it is the ONLY place the word "CABINET" appears in the Constitution** - the F1.6 point
- 2 It must be **approved by BOTH Houses within ONE MONTH** (reduced by the 44th Amendment from two months)
- 3 Approval requires a **SPECIAL MAJORITY** - a majority of the **total membership** of the House and **two-thirds of members present and voting**. **This is the same special majority as a constitutional amendment**, and it was introduced by the 44th Amendment; previously a simple majority sufficed
- 4 Once approved, it continues for **SIX MONTHS**, and may be extended **by six months at a time** with fresh parliamentary approval each time - **so there is no indefinite operation without repeated approval**
- 5 **REVOCATION:** the President may revoke it at any time by a subsequent proclamation. **And the 44th Amendment added a crucial provision: if the LOK SABHA passes a resolution DISAPPROVING its continuance by a SIMPLE MAJORITY, the President MUST revoke it.** Further, **if one-tenth of the members of the Lok Sabha give notice, a special sitting must be held within 14 days** to consider such a resolution
- 6 **Judicial review:** the 38th Amendment had made the proclamation immune from review; the **44th Amendment removed that immunity**, and the proclamation is now reviewable on the ground of **malafides** or that it rests on **wholly extraneous or irrelevant facts**

Read the 44th Amendment's five safeguards as a set, because together they are the answer to "how did the Constitution respond to the 1975 Emergency?": armed rebellion instead of internal disturbance; the Cabinet's written recommendation; one month instead of two for approval; a special majority instead of a simple one; and Lok Sabha revocation on a simple majority with the 14-day special sitting mechanism.

MUST MASTER · EFFECTS - AND EXACTLY WHICH RIGHTS SURVIVE**EFFECT ON THE CENTRE-STATE RELATIONSHIP:**

- 1 **Executive:** the Union may give **directions to any State on ANY matter** - the State executive does not cease to function, but comes under central direction
- 2 **Legislative:** **Parliament may legislate on ANY subject in the STATE LIST** (Article 250). Such a law ceases to operate **six months after the Emergency ends**
- 3 **Financial:** the President may **modify the distribution of revenues** between Union and States, subject to laying the order before Parliament
- 4 **Duration of the Lok Sabha** may be extended by **one year at a time** during the Emergency, and in any case not beyond **six months after it ceases**

EFFECT ON FUNDAMENTAL RIGHTS - the two articles that do the work:**ARTICLE 358 - SUSPENSION OF ARTICLE 19.**

- 1 When a National Emergency is in operation, **the State's power to make laws or take executive action inconsistent with ARTICLE 19 is not restricted**
- 2 **Restricted by the 44th Amendment in two ways:** it now operates **only where the Emergency is declared on the ground of WAR or EXTERNAL AGGRESSION - NOT on the ground of ARMED REBELLION**; and only laws **containing a recital that they relate to the Emergency** get the protection
- 3 **Article 358 operates AUTOMATICALLY** on the proclamation, and is confined to **Article 19**

ARTICLE 359 - SUSPENSION OF THE ENFORCEMENT OF RIGHTS.

- 1 The President may **by ORDER declare that the RIGHT TO MOVE ANY COURT for the enforcement of specified Fundamental Rights shall remain SUSPENDED**
- 2 **It requires a Presidential ORDER - it is not automatic**, unlike Article 358
- 3 It suspends the **REMEDY, not the RIGHT** - the right continues to exist but cannot be enforced during the period
- 4 **THE 44th AMENDMENT'S ABSOLUTE PROTECTION:** an order under Article 359 **CANNOT cover ARTICLE 20 or ARTICLE 21**. So **protection against conviction for a retrospective offence, double jeopardy and self-incrimination (Art 20), and the right to life and personal liberty (Art 21), remain ENFORCEABLE EVEN DURING A NATIONAL EMERGENCY**

The distinction between the two articles is a standard examination question, so hold it precisely:

Feature	Article 358	Article 359
Rights affected	Article 19 only	Any specified rights, EXCEPT Arts 20 and 21
How it operates	AUTOMATICALLY on proclamation	Only by Presidential ORDER
What is suspended	The right itself (as a restraint on the State)	The REMEDY - the right to move a court
Available for armed rebellion?	NO - only war or external aggression (44th Amdt)	Yes , but never for Arts 20 and 21

The historical point that makes this matter. In **ADM Jabalpur v Shivkant Shukla (1976)** - the Habeas Corpus case - the Supreme Court held by majority that during the Emergency a detainee had **no locus to move a court for enforcement of Article 21**, because its enforcement had been suspended. **Justice HR Khanna's lone dissent cost him the Chief Justiceship**. The judgment is now universally regarded as the Court's low point, was expressly overruled in **KS Puttaswamy (2017)**, and the **44th Amendment's protection of Articles 20 and 21 was enacted precisely so that ADM Jabalpur could never recur**.

That sequence - the 1975 Emergency, ADM Jabalpur, Khanna's dissent, the 44th Amendment, and the eventual overruling in Puttaswamy - is the most instructive story in Indian constitutional law, and it is worth being able to tell in three sentences.

Only THREE National Emergencies have ever been proclaimed:

- 1 **1962** - Chinese aggression (external)
- 2 **1971** - war with Pakistan (external)
- 3 **1975** - "internal disturbance" (internal) - the controversial one, revoked in **1977**

CHECK YOURSELF · SESSION 3

- 1 State the three grounds, and say which one the 44th Amendment substituted for what
- 2 Distinguish an external from an internal Emergency
- 3 Which amendment allowed a proclamation for part of India only?
- 4 Name the five safeguards added by the 44th Amendment
- 5 What majority is needed for parliamentary approval, and within what period?
- 6 How may the Lok Sabha compel revocation, and what is the 14-day mechanism?
- 7 State the legislative, executive and financial effects
- 8 Distinguish Article 358 from Article 359 on all four points in the table
- 9 Which two articles can never be suspended, and which amendment protected them?
- 10 What did ADM Jabalpur decide, who dissented, and when was it overruled?
- 11 Name the three National Emergencies with years and grounds

4. Session 4 - President's Rule and Financial Emergency ★★★★★

MUST MASTER · ARTICLE 356 - PRESIDENT'S RULE

GROUND. The President may act if, **on receipt of a report from the GOVERNOR of a State or OTHERWISE**, he is satisfied that **a situation has arisen in which the GOVERNMENT OF THE STATE CANNOT BE CARRIED ON IN ACCORDANCE WITH THE PROVISIONS OF THIS CONSTITUTION.**

Note the words "or OTHERWISE" - the President is **not dependent on the Governor's report**, and may act on other information. This is a real and examinable point.

Article 365 adds a further route: where a State **fails to comply with a direction of the Union** given under any provision of the Constitution, the President **may hold that a situation has arisen in which the government of the State cannot be carried on in accordance with the Constitution. This is the sanction behind the Article 256 and 257 directions from F1.8.**

PROCEDURE:

- 1 Approval by **BOTH Houses within TWO MONTHS**
- 2 Approval requires only a **SIMPLE MAJORITY** - **note the contrast with the special majority required for a National Emergency**
- 3 Once approved, it continues for **SIX MONTHS**, extendable by six months at a time, **subject to a MAXIMUM OF THREE YEARS**
- 4 **Beyond ONE YEAR, extension requires TWO further conditions to be satisfied simultaneously** (a 44th Amendment safeguard): a **National Emergency must be in operation** in the whole of India or the State concerned, **AND the Election Commission must certify** that elections to the State Assembly cannot be held

That two-condition requirement beyond one year is the 44th Amendment's principal constraint on Article 356, and it is heavily examined. Its purpose was to stop the indefinite continuation of President's Rule that had occurred previously.

EFFECTS:

- 1 The President assumes to himself the **functions of the State Government** and the powers vested in the **Governor** or any other State authority - **except those of the HIGH COURT**, whose powers he may not assume. **This exception is a favourite question**
- 2 **The State Legislative Assembly's powers are exercised by PARLIAMENT**; it may be **suspended or dissolved**
- 3 Parliament may **delegate** the law-making power for the State to the President, who may then make **ordinances** for the State

THE CONSTRAINTS FROM CASE LAW - and you have met the leading case in F1.6.

SR BOMMAI v UNION OF INDIA (1994) is the decisive judgment, and its holdings should be known as a set:

- 1 **The Governor's satisfaction is SUBJECT TO JUDICIAL REVIEW** - Article 356 is not immune
- 2 **The FLOOR OF THE HOUSE is the ONLY proper test of a Government's majority** - the Governor cannot decide the question on his own assessment of party strengths or on the basis of letters
- 3 **Article 356 cannot be used for POLITICAL ADVANTAGE**, and a proclamation made on irrelevant or mala fide grounds can be struck down
- 4 **The Assembly should NOT be DISSOLVED until Parliament has APPROVED the proclamation** - because if Parliament disapproves, a dissolved Assembly cannot be restored
- 5 **The Court may RESTORE a dismissed Government** if the proclamation is held invalid

The SARKARIA COMMISSION (1988) had earlier recommended that Article 356 be used **sparingly, as a last resort**, and that the Governor should explore all alternatives before recommending it - recommendations the Court substantially endorsed. **Rameshwar Prasad (2006)** applied Bommai to strike down the dissolution of the Bihar Assembly.

Note that Article 356 has been used well over a hundred times, which is why the constraints matter. **Exact counts vary by source and are marked CONFIRM.**

MUST MASTER · ARTICLE 360 - FINANCIAL EMERGENCY

GROUND. The President may proclaim a Financial Emergency if he is satisfied that **a situation has arisen whereby the FINANCIAL STABILITY OR CREDIT of India or of any part of its territory is threatened.**

PROCEDURE:

- 1 Approval by **both Houses within TWO MONTHS**, by **SIMPLE MAJORITY**
- 2 **Once approved, it continues INDEFINITELY until revoked - there is NO maximum period and NO requirement of periodic renewal. This is the distinguishing procedural feature and it is regularly tested**

EFFECTS:

- 1 The Union may give **directions to any State** to observe such canons of **financial propriety** as may be specified
- 2 Directions may require the **reduction of salaries and allowances of all or any class of persons serving the State**
- 3 The President may require the **reduction of salaries and allowances of persons serving the UNION**, including **JUDGES OF THE SUPREME COURT AND THE HIGH COURTS - the ONLY circumstance in which judges' salaries may be reduced**, and the express exception to the protection in F1.7
- 4 **All Money Bills and other financial Bills passed by a State Legislature may be reserved for the President's consideration**

A FINANCIAL EMERGENCY HAS NEVER BEEN PROCLAIMED IN INDIA. Not in 1991, when the balance-of-payments crisis was at its most severe, nor at any other time. **That fact is itself examinable**, and it is worth remembering as the single distinguishing feature of Article 360.

COMMON UPSC TRAP · THE THREE EMERGENCIES COMPARED - THE TABLE THAT ANSWERS MOST QUESTIONS

Feature	National (352)	President's Rule (356)	Financial (360)
Ground	War, external aggression, armed rebellion	State government cannot be carried on per the Constitution	Financial stability or credit threatened
Approval period	ONE month	TWO months	TWO months
Majority needed	SPECIAL	SIMPLE	SIMPLE
Duration per approval	6 months , renewable	6 months , renewable	Indefinite until revoked
Maximum	No limit , but 6-monthly approvals	THREE YEARS , with conditions beyond 1 year	No limit
Times used	THREE (1962, 1971, 1975)	Over 100 times	NEVER
Effect on rights	Arts 358 and 359 apply	No effect on Fundamental Rights	No effect on Fundamental Rights

THE THREE MOST TESTED CONTRASTS FROM THIS TABLE:

- 1 National Emergency needs a SPECIAL majority within ONE month; the other two need a SIMPLE majority within TWO months**
- 2 Only a National Emergency affects Fundamental Rights.** President's Rule and Financial Emergency do **not** suspend any right
- 3 National Emergency used three times; President's Rule over a hundred; Financial Emergency never**

CHECK YOURSELF · SESSION 4

- 1 State the ground under Article 356, and the significance of "or otherwise"
- 2 What does Article 365 add, and which F1.8 provisions does it enforce?
- 3 State the approval period and majority, and the maximum duration
- 4 What two conditions must be satisfied simultaneously to extend beyond one year?
- 5 Whose powers may the President NOT assume under Article 356?
- 6 Name five holdings of SR Bommai
- 7 What did the Sarkaria Commission recommend?
- 8 State the ground, procedure and three effects of a Financial Emergency
- 9 Which is the only circumstance in which judges' salaries may be reduced?
- 10 Fill in the three-Emergency comparison table from memory

5. Session 5 - Article 44 and the Uniform Civil Code



START FROM ZERO · WHAT ARTICLE 44 SAYS AND WHAT IT DOES NOT

Article 44 - "The State shall endeavour to secure for the citizens a **UNIFORM CIVIL CODE** throughout the territory of India."

Three things follow immediately from the text and its placement:

- 1 **It is in PART IV** - a **DIRECTIVE PRINCIPLE**, and therefore **NON-JUSTICIABLE** under **Article 37**. No citizen can compel the State to enact a Uniform Civil Code, and no court can strike down its absence
- 2 **The word is "ENDEAVOUR"** - not "shall secure" but "shall endeavour to secure". The obligation is one of effort, not result
- 3 **"CIVIL"** - the subject matter is **personal law**: marriage, divorce, maintenance, adoption, guardianship, inheritance and succession. **Criminal law is ALREADY uniform** in India through the Indian Penal Code and its successor legislation, and contract, property and commercial law are largely uniform too. **So the UCC debate concerns a defined and relatively narrow field**, and clarifying that is the first step to discussing it sensibly

Why personal law is not uniform. At Independence, India inherited **separate personal laws for different religious communities** - Hindu, Muslim, Christian, Parsi and Jewish - many of them partly codified by the colonial administration. The Constituent Assembly debated a UCC and **placed it in Part IV rather than Part III** as a deliberate compromise: the goal was affirmed, the timing was left to the future.

What has happened since, and this is the balanced factual position:

- 1 **Hindu personal law was extensively CODIFIED** between 1955 and 1956 - the Hindu Marriage Act 1955, Hindu Succession Act 1956, Hindu Minority and Guardianship Act 1956, and Hindu Adoptions and Maintenance Act 1956. **These apply to Hindus, Buddhists, Jains and Sikhs**
- 2 **Muslim personal law remains largely uncodedified**, governed by the Muslim Personal Law (Shariat) Application Act 1937 and judicial interpretation, with specific statutory interventions such as the **Muslim Women (Protection of Rights on Divorce) Act 1986** and the **Muslim Women (Protection of Rights on Marriage) Act 2019** on triple talaq
- 3 **A uniform OPTIONAL alternative already exists**: the **SPECIAL MARRIAGE ACT 1954** allows any two persons to marry irrespective of religion, with succession then governed by the **Indian Succession Act 1925**. **So a religion-neutral civil regime is already available to those who choose it** - an important and often-overlooked fact
- 4 **GOA has had a common civil code** since Portuguese times, applicable to all its residents - **the standing example within India**
- 5 **UTTARAKHAND enacted a Uniform Civil Code in 2024**, the first State to do so in the post-Constitution period. **Other States have announced intentions; treat the current position as evolving and marked CONFIRM**

KNOW · THE JUDICIAL OBSERVATIONS, AND THE ARGUMENTS ON BOTH SIDES

The cases in which the Supreme Court has commented on **Article 44** are examinable by name:

- 1 **MOHD AHMED KHAN v SHAH BANO BEGUM (1985)** - held that a divorced Muslim woman was entitled to maintenance under **Section 125 of the Criminal Procedure Code**, and observed that Article 44 had remained a dead letter. The judgment led to the **Muslim Women (Protection of Rights on Divorce) Act 1986**, which was itself later read by the courts as preserving the substance of the maintenance right
- 2 **SARLA MUDGAL v UNION OF INDIA (1995)** - held that a Hindu husband's conversion to Islam does not dissolve his existing Hindu marriage, and that a second marriage in such circumstances is void; again referred to Article 44
- 3 **JOHN VALLAMATTOM v UNION OF INDIA (2003)** - struck down a provision of the Indian Succession Act discriminating against Christians in charitable bequests, with observations on Article 44
- 4 **SHAYARA BANO v UNION OF INDIA (2017)** - held **instantaneous triple talaq (talaq-e-biddat) unconstitutional**, leading to the 2019 Act

Note carefully what the Court has and has not done. It has **commented** on Article 44 and **urged** the State to act; it has **never DIRECTED** the enactment of a Uniform Civil Code, and it could not, Article 44 being non-justiciable. **A question suggesting the Supreme Court has directed a UCC is wrong.**

THE ARGUMENTS, stated fairly on both sides, because that is what an interview requires: FOR a Uniform Civil Code:

- 1 **EQUALITY** - Articles 14 and 15 promise equality, and personal laws that treat women differently by community sit uneasily with that promise. **Gender justice is the strongest argument**
- 2 **NATIONAL INTEGRATION** - a common civil law reduces the salience of religious identity in civil status
- 3 **SIMPLICITY AND CERTAINTY** - one body of law is easier to administer and litigate than five
- 4 **The Constituent Assembly's own intention** - Article 44 was included precisely because a UCC was regarded as desirable

AGAINST, or urging caution:

- 1 **ARTICLE 25 FREEDOM OF RELIGION** - the right to profess, practise and propagate religion, and the associated right of communities to manage their own affairs. **The counter-argument is that Article 25 is subject to public order, morality and health, and does not protect discriminatory practices**
- 2 **DIVERSITY AND FEDERALISM** - India's personal-law diversity extends beyond religion to region and tribe; several **Scheduled Tribe** communities have distinct customary laws, and the Sixth Schedule areas have constitutionally protected customary practice
- 3 **SEQUENCING** - reform within each personal law, achieved with community consent, may deliver gender justice more durably than imposition
- 4 **PRACTICAL DIFFICULTY** - drafting a code that is genuinely neutral, rather than one community's law generalised, is a substantial exercise

The balanced formulation, and the one to use: Article 44 states a constitutional aspiration that has not been fulfilled; the goal of gender justice within personal law is not seriously contested, and the real disagreement is about METHOD, SEQUENCING and CONSENT rather than about whether women should have equal rights. That formulation is accurate, respects the constitutional text, and takes no political side - which is exactly what the question calls for.

ACTION · WHERE THIS LEAVES YOU, AND WHAT F1.13 DOES

Module 1's remainder is nearly complete. **Next: Chapter F1.13 - THE GOVERNANCE AND SCHEMES HARVEST**, the closing chapter of Module 1 and the one that applies the **three-fact rule** from F1.11 and F2.10 to the governance topics the paper harvests - e-governance, the citizen's charter, good-governance principles, the Second Administrative Reforms Commission, transparency and accountability mechanisms, and the flagship schemes whose Ministry-and-purpose triples generated five questions in 2023.

It also closes Module 1 with a **consolidated Master Numbers Table** for the whole module - the Polity equivalent of what F3.10 did for Social Security.

6. Graded Practice - 42 Questions ★★★★★

6.1 Level 1 - Recognition

Q. 1. The power of Parliament to amend the Constitution is in

- (a) Article 356 (b) Article 360 (c) Article 368 (d) Article 372

Q. 2. A Constitution Amendment Bill

- (a) requires the President's prior recommendation (b) does not require the President's prior recommendation (c) may be introduced only in the Lok Sabha (d) may be introduced only by a Minister

Q. 3. A joint sitting to resolve a deadlock on a Constitution Amendment Bill is

- (a) available under Article 108 (b) not available (c) available only for Money Bills (d) available at the President's discretion

Q. 4. Presidential assent to a Constitution Amendment Bill was made obligatory by the

- (a) 1st Amendment (b) 24th Amendment (c) 42nd Amendment (d) 44th Amendment

Q. 5. Ratification by the States requires the approval of

- (a) one-third of the States (b) one-half of the States (c) two-thirds of the States (d) all the States

Q. 6. State ratification is by

- (a) special majority (b) simple majority (c) referendum (d) Governor's assent alone

Q. 7. A change in the name or boundary of a State requires

- (a) a special majority (b) a simple majority under Articles 2 and 3 (c) ratification by half the States (d) the consent of the State concerned

Q. 8. The 42nd Amendment added to the Preamble the words

- (a) sovereign and democratic (b) socialist, secular and integrity (c) republic and justice (d) liberty and equality

Q. 9. Fundamental Duties were added by the

- (a) 24th Amendment (b) 42nd Amendment (c) 44th Amendment (d) 86th Amendment

Q. 10. The right to property was deleted from Part III by the

- (a) 25th Amendment (b) 42nd Amendment (c) 44th Amendment (d) 52nd Amendment

Q. 11. The anti-defection law is in the

- (a) Eighth Schedule (b) Ninth Schedule (c) Tenth Schedule (d) Eleventh Schedule

Q. 12. The grounds for a National Emergency are

- (a) war, external aggression or internal disturbance (b) war, external aggression or armed rebellion (c) financial instability (d) failure of constitutional machinery

Q. 13. "Internal disturbance" was replaced by "armed rebellion" by the

- (a) 38th Amendment (b) 42nd Amendment (c) 44th Amendment (d) 59th Amendment

Q. 14. A National Emergency must be approved by Parliament within

- (a) one month (b) two months (c) three months (d) six months

Q. 15. President's Rule must be approved within

(a) one month (b) two months (c) three months (d) six months

Q. 16. The maximum duration of President's Rule is

(a) one year (b) two years (c) three years (d) indefinite

Q. 17. A Financial Emergency has been proclaimed

(a) once, in 1991 (b) twice (c) three times (d) never

Q. 18. The Uniform Civil Code is referred to in

(a) Article 25 (b) Article 37 (c) Article 44 (d) Article 51A

6.2 Level 2 - Understanding

Q. 19. Amendments requiring ratification by the States include

(a) Fundamental Rights (b) Directive Principles (c) the distribution of legislative powers and any of the Lists in the Seventh Schedule (d) Fundamental Duties

Q. 20. The special majority under Article 368 means

(a) two-thirds of the total membership (b) a majority of the total membership AND two-thirds of members present and voting (c) three-fourths of members present and voting (d) a simple majority in a joint sitting

Q. 21. The 42nd Amendment is called the "mini-Constitution" because

(a) it shortened the Constitution (b) it made sweeping changes across the Preamble, Fundamental Duties, the Seventh Schedule, terms of legislatures and judicial review of amendments (c) it created a new Constitution for States (d) it was passed by referendum

Q. 22. Which one of the following was NOT done by the 44th Amendment?

(a) Restoring Lok Sabha terms to five years (b) Requiring the Cabinet's written recommendation for a National Emergency (c) Adding Fundamental Duties (d) Protecting Articles 20 and 21 from suspension

Q. 23. In IR Coelho (2007) the Supreme Court held that laws placed in the Ninth Schedule after 24 April 1973

(a) are absolutely immune from challenge (b) are open to challenge if they violate the basic structure (c) are automatically void (d) require State ratification

Q. 24. Under the Tenth Schedule, disqualification does not apply where

(a) one-third of the legislature party splits (b) not less than two-thirds of the legislature party agree to a merger (c) the member resigns (d) the Speaker permits defection

Q. 25. The one-third "split" exception in the Tenth Schedule was deleted by the

(a) 52nd Amendment (b) 61st Amendment (c) 91st Amendment (d) 97th Amendment

Q. 26. In Kihoto Hollohan (1992) the Supreme Court held that the Speaker's decision under the Tenth Schedule is

(a) final and not reviewable (b) subject to judicial review (c) reviewable only by the President (d) reviewable only by the Election Commission

Q. 27. Approval of a National Emergency requires

(a) a simple majority (b) a special majority - a majority of the total membership and two-thirds of those present and voting (c) three-fourths of the total membership (d) unanimity

Q. 28. Article 358 suspends

(a) all Fundamental Rights (b) Article 19 only, and only where the Emergency rests on war or external aggression (c) Articles 20 and 21 (d) the right to move the courts generally

Q. 29. Article 359 suspends

(a) the rights themselves (b) the right to move any court for the enforcement of specified rights, but never Articles 20 and 21 (c) Article 19 automatically (d) the powers of the High Courts

Q. 30. In ADM Jabalpur (1976) the Supreme Court held that

(a) Article 21 remained enforceable (b) a detainee had no locus to enforce Article 21 during the Emergency, with Justice HR Khanna dissenting (c) the Emergency was unconstitutional (d) preventive detention was void

Q. 31. Extension of President's Rule beyond one year requires

(a) only fresh parliamentary approval (b) a National Emergency to be in operation AND the Election Commission's certification that elections cannot be held (c) the Governor's consent (d) a Supreme Court order

Q. 32. Under Article 356 the President may NOT assume the powers of

(a) the State Legislature (b) the Governor (c) the High Court (d) the Council of Ministers

Q. 33. The only circumstance in which the salaries of Supreme Court and High Court judges may be reduced is

(a) a National Emergency (b) President's Rule (c) a Financial Emergency (d) a resolution of Parliament

6.3 Level 3 - Recruitment Test standard**Q. 34. Match List-I with List-II and select the correct answer using the code below:**

List-I	List-II
A. National Emergency	1. Article 356
B. President's Rule	2. Article 360
C. Financial Emergency	3. Article 352
D. Amendment of the Constitution	4. Article 368

(a) A-3 B-1 C-2 D-4 (b) A-1 B-3 C-2 D-4 (c) A-3 B-2 C-1 D-4 (d) A-4 B-1 C-2 D-3

Q. 35. Consider the following statements about Article 368:

- 1 A Constitution Amendment Bill may be introduced in either House and by a private member.
- 2 There is no provision for a joint sitting.
- 3 Ratification by States, where required, must be completed before the Bill is presented for assent.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 36. Which one of the following statements is not correct?

(a) A National Emergency requires approval within one month by a special majority (b) President's Rule requires approval within two months by a simple majority (c) A Financial Emergency, once approved, continues indefinitely until revoked (d) President's Rule suspends Fundamental Rights under Articles 358 and 359

Q. 37. Consider the following holdings of SR Bommai (1994):

- 1 The Governor's satisfaction under Article 356 is subject to judicial review.
- 2 The floor of the House is the only proper test of majority.
- 3 The Assembly should not be dissolved until Parliament has approved the proclamation.

Which of the above are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. The 44th Amendment's protection of Articles 20 and 21 was enacted principally because

(a) the articles were being misused (b) of the majority holding in ADM Jabalpur that Article 21's enforcement could be suspended (c) the Supreme Court requested it (d) of a Finance Commission recommendation

Q. 39. Consider the following statements about Article 44:

- 1 It is a Directive Principle and therefore non-justiciable.
- 2 The Supreme Court has directed Parliament to enact a Uniform Civil Code.
- 3 Goa has a common civil code, and Uttarakhand enacted one in 2024.

Which of the above statements are correct?

(a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 40. The Special Marriage Act 1954 is relevant to the Uniform Civil Code debate because

(a) it repealed all personal laws (b) it already provides an optional religion-neutral civil regime for marriage, with succession under the Indian Succession Act 1925 (c) it applies only to Hindus (d) it was struck down

Q. 41. Which case held instantaneous triple talaq unconstitutional?

(a) Shah Bano 1985 (b) Sarla Mudgal 1995 (c) John Vallamattom 2003 (d) Shayara Bano 2017

Q. 42. Article 365 provides that where a State fails to comply with a Union direction, the President may

(a) dissolve the State Assembly immediately (b) hold that a situation has arisen in which the government of the State cannot be carried on in accordance with the Constitution (c) impose a Financial Emergency (d) legislate for the State without parliamentary approval

7. Answers and Explanations

7.1 Level 1

Q	Ans	Explanation
1	c	Article 368
2	b	No prior recommendation - a genuine trap, since Money Bills do require it

Q	Ans	Explanation
3	b	Not available. Each House must pass it separately by the required majority
4	b	24th Amendment 1971
5	b	One-half of the States - not two-thirds
6	b	Simple majority in the State Legislature
7	b	Simple majority under Articles 2 and 3 - which is what makes States "destructible"
8	b	Socialist, secular and integrity
9	b	42nd Amendment - Part IVA, Article 51A
10	c	44th Amendment , making it Article 300A, a legal right
11	c	Tenth Schedule
12	b	War, external aggression or armed rebellion
13	c	44th Amendment 1978 - the single most important change in Article 352
14	a	One month - reduced by the 44th Amendment from two
15	b	Two months
16	c	Three years , with conditions beyond one year
17	d	Never - not even in 1991
18	c	Article 44

7.2 Level 2

Q	Ans	Explanation
19	c	Distribution of legislative powers and the Seventh Schedule Lists - federal-structure provisions. Fundamental Rights and Directive Principles need only a special majority
20	b	Both limbs together - a majority of total membership AND two-thirds of those present and voting
21	b	Sweeping changes across many provisions , made during the 1975-77 Emergency
22	c	Fundamental Duties were added by the 42nd , not the 44th. The other three are all 44th Amendment changes
23	b	Open to challenge on basic-structure grounds - so the Ninth Schedule is no longer an absolute shield. Note the 24 April 1973 date, the same as in Waman Rao
24	b	Two-thirds merger
25	c	91st Amendment 2003 , which removed the incentive for engineered splits
26	b	Subject to judicial review , notwithstanding the finality clause
27	b	Special majority - introduced by the 44th Amendment; previously a simple majority sufficed
28	b	Article 19 only, and after the 44th Amendment only for war or external aggression - NOT armed rebellion
29	b	The remedy, not the right, and never Articles 20 and 21 after the 44th Amendment
30	b	No locus to enforce Article 21, with Khanna dissenting. Overruled in Puttaswamy 2017
31	b	Both conditions simultaneously - a 44th Amendment safeguard against indefinite President's Rule

Q	Ans	Explanation
32	c	The High Court - expressly excepted
33	c	A Financial Emergency - the express exception to the protection in F1.7

7.3 Level 3

Q	Ans	Explanation
34	a	A-3 National = 352; B-1 President's Rule = 356; C-2 Financial = 360; D-4 amendment = 368
35	d	All three correct - either House and private members, no joint sitting, and ratification before assent
36	d	(d) is FALSE. President's Rule does NOT suspend Fundamental Rights. Only a National Emergency engages Articles 358 and 359
37	d	All three correct - three of Bommai's five principal holdings
38	b	Because of ADM Jabalpur's majority holding. The 44th Amendment was enacted so that it could never recur
39	b	1 and 3 only. Statement 2 is FALSE - the Court has commented and urged but never DIRECTED a UCC, and could not, Article 44 being non-justiciable
40	b	An optional religion-neutral regime already exists under the 1954 Act with succession under the 1925 Act - an often-overlooked fact in the debate
41	d	Shayara Bano 2017 , leading to the 2019 Act
42	b	Article 365 - the sanction behind the Article 256 and 257 directions from F1.8

8. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.12 - AMENDMENTS AND EMERGENCY

THE DILEMMA amendment too easy = no protection; too hard = no adaptation · **India's answer: THREE GRADED PROCEDURES** plus the **judicially created BASIC STRUCTURE limit** · *the 42nd Amendment expanded power in both halves of this chapter; the 44th reined it back*

ART 368 PROCEDURE initiated by a Bill in **EITHER House** · **NO prior Presidential recommendation** · may be introduced by a **PRIVATE MEMBER** · **NO JOINT SITTING** · **24th Amendment 1971 made assent OBLIGATORY**

PROCEDURE 1 - SIMPLE MAJORITY (technically not Art 368 amendments) **Arts 2 and 3 new States, boundaries, names** · Legislative Councils (Art 169) · citizenship · salaries of MPs, Ministers and judges · quorum, procedure, privileges · **use of English in Parliament** · number of Supreme Court puisne judges · **FIFTH and SIXTH SCHEDULES** · elections, delimitation, Union Territories

PROCEDURE 2 - SPECIAL MAJORITY in **EACH House separately: a majority of the TOTAL MEMBERSHIP** and **two-thirds of those PRESENT AND VOTING** · covers **Fundamental Rights, Directive Principles** and the general residue

PROCEDURE 3 - SPECIAL MAJORITY + RATIFICATION BY HALF THE STATES · election of the President (54, 55) · executive power of Union (73) and States (162) · Supreme Court and High Courts · distribution of legislative powers · any of the **SEVENTH SCHEDULE LISTS** · representation of States in Parliament · Art 368 itself · GST Council (279A) · ratification is by **SIMPLE majority, ONE-HALF of States, NO TIME LIMIT, and CANNOT BE WITHDRAWN**, and must precede assent · *memory device: everything a State could reasonably object to being changed without its consent*

THE FOUR ART 368 TRAPS no Presidential recommendation · **no joint sitting** · **one-half not two-thirds of States** · **State names and boundaries change by SIMPLE majority** · **plus the substantive limit: Kesavananda 1973, Minerva Mills 1980 striking down Art 368(4) and (5), and the NJAC case 2015**

THE KEY AMENDMENTS **1st 1951** Ninth Schedule, Art 15(4) · **7th 1956** State reorganisation, common High Court, Governor for two States · **24th 1971** power to amend Part III, assent obligatory · **25th 1971** Art 31C · **42nd 1976 MINI-CONSTITUTION** · **44th 1978 THE CORRECTIVE** · **52nd 1985** anti-defection, Tenth Schedule · **61st 1989** voting age 21 to 18 · **73rd/74th 1992** panchayats and municipalities · **80th 2000** divisible pool · **86th 2002** Art 21A education · **91st 2003** 15% ministers cap, deleted the split exception · **97th 2011** co-operatives · **99th 2014** NJAC, struck down · **101st 2016** GST · **102nd 2018** NCBC · **103rd 2019** EWS 10% · **104th 2020** SC/ST extension, Anglo-Indian nomination abolished · **105th 2021** State backward-class lists restored · **106th 2023** women's reservation one-third

THE 42nd / 44th PAIR - learn as matched changes terms **6 years** → **back to 5** · Emergency ground "**internal disturbance**" → "**ARMED REBELLION**" · **44th added the CABINET'S WRITTEN RECOMMENDATION** · **44th protected ARTS 20 AND 21 absolutely** · **42nd inserted Art 368(4)-(5)** → **Minerva Mills struck them down** · **44th added the Art 74 reconsideration proviso** · **44th deleted the RIGHT TO PROPERTY from Part III** → **Art 300A**

NINTH SCHEDULE added by the **1st Amendment**, Art 31B immunity · **IR COELHO 2007: laws added AFTER 24 APRIL 1973 are open to BASIC STRUCTURE challenge** - no longer an absolute shield

TENTH SCHEDULE disqualification for **voluntarily giving up membership** or **voting against a party direction** (permission or condonation within **15 days**) · independents disqualified on **joining** a party · nominated members after **6 months** · **EXCEPTION: a TWO-THIRDS MERGER** · the **one-third SPLIT exception was DELETED** by the 91st Amendment 2003 · **Speaker decides**, but **KIHOTO HOLLOHAN 1992: subject to JUDICIAL REVIEW**

ART 352 NATIONAL EMERGENCY grounds **WAR, EXTERNAL AGGRESSION, ARMED REBELLION** · **war/aggression = EXTERNAL emergency; armed rebellion = INTERNAL** · may cover **part of India** (42nd Amdt) · may be proclaimed on **IMMINENT DANGER**

- 1 **FIVE 44th AMENDMENT SAFEGUARDS: armed rebellion** replaces internal disturbance · **CABINET'S WRITTEN RECOMMENDATION** (the only place "Cabinet" appears in the Constitution) · approval within **ONE MONTH** (from two) · **SPECIAL MAJORITY** (from simple) · **LOK SABHA may compel revocation by SIMPLE MAJORITY, with a SPECIAL SITTING within 14 DAYS on notice by one-tenth of members**
 - 2 continues **6 months at a time** with fresh approval · **judicial review restored** by the 44th (malafides, wholly extraneous facts)
 - 3 **EFFECTS: Union may direct States on ANY matter · Parliament may legislate on the STATE LIST (Art 250), such laws lapsing 6 months after · President may modify revenue distribution · Lok Sabha extendable by ONE YEAR at a time**
- ART 358 vs ART 359 - always tested 358: ARTICLE 19 ONLY · AUTOMATIC on proclamation · suspends the RIGHT · after the 44th, ONLY for WAR or EXTERNAL AGGRESSION, and only for laws reciting the Emergency · 359: ANY SPECIFIED RIGHTS EXCEPT ARTS 20 AND 21 · requires a PRESIDENTIAL ORDER · suspends the REMEDY, not the right**
- ADM JABALPUR 1976** majority held a detainee had **no locus to enforce Art 21** during the Emergency · **JUSTICE HR KHANNA'S LONE DISSENT cost him the Chief Justiceship · overruled in KS PUTTASWAMY 2017 · the 44th Amendment's protection of Arts 20 and 21 exists so it can never recur**
- THREE NATIONAL EMERGENCIES ONLY 1962** Chinese aggression · **1971** war with Pakistan · **1975** "internal disturbance", revoked **1977**
- ART 356 PRESIDENT'S RULE** ground: the State government **cannot be carried on in accordance with the Constitution**, on the Governor's report **OR OTHERWISE** · **ART 365: failure to comply with a Union direction may be so held - the sanction behind Arts 256 and 257 · approval within TWO MONTHS by SIMPLE MAJORITY · 6 months at a time, MAXIMUM THREE YEARS · beyond ONE YEAR needs BOTH a National Emergency in operation AND the Election Commission's certification that elections cannot be held · President assumes State functions EXCEPT THOSE OF THE HIGH COURT · Parliament exercises the Assembly's powers**
- 1 **SR BOMMAI 1994: satisfaction is judicially reviewable · the FLOOR TEST is the only proper test of majority · not to be used for political advantage · the Assembly should not be dissolved before Parliament approves · the Court may restore a dismissed Government**
 - 2 **SARKARIA COMMISSION 1988: use sparingly, as a last resort · RAMESHWAR PRASAD 2006 applied Bommai**
- ART 360 FINANCIAL EMERGENCY** ground: **financial stability or credit threatened** · approval within **TWO MONTHS** by **SIMPLE MAJORITY · once approved, continues INDEFINITELY until revoked - no maximum, no renewal** · effects: canons of **financial propriety, reduction of salaries of State and Union servants INCLUDING SUPREME COURT AND HIGH COURT JUDGES** (the **only** circumstance in which judges' salaries may be reduced), and State Money Bills reserved for the President · **NEVER PROCLAIMED - not even in 1991**
- THE THREE EMERGENCIES CONTRASTED** National: **ONE month, SPECIAL majority, used THREE times, AFFECTS Fundamental Rights · President's Rule: TWO months, SIMPLE majority, used over 100 times, NO effect on rights, MAX 3 years · Financial: TWO months, SIMPLE majority, NEVER used, NO effect on rights, INDEFINITE**

ART 44 UNIFORM CIVIL CODE Part IV, NON-JUSTICIABLE under Art 37, and the word is **"ENDEAVOUR"** · concerns **PERSONAL LAW only** - criminal, contract and commercial law are **already uniform** · **Hindu law codified 1955-56** (applying to Hindus, Buddhists, Jains, Sikhs); **Muslim personal law largely uncoded** · **the SPECIAL MARRIAGE ACT 1954 already provides an OPTIONAL religion-neutral regime**, with succession under the **Indian Succession Act 1925** · **GOA has a common civil code; UTTARAKHAND enacted one in 2024** · cases: **SHAH BANO 1985, SARLA MUDGAL 1995, JOHN VALLAMATTOM 2003, SHAYARA BANO 2017** (triple talaq unconstitutional → **2019 Act**) · **the Court has COMMENTED and URGED but NEVER DIRECTED a UCC**, and could not, **Art 44 being non-justiciable** · **balanced formulation: the goal of gender justice is not seriously contested; the disagreement is about METHOD, SEQUENCING and CONSENT**

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.12 - AMENDMENTS AND EMERGENCY

ART 368: either House · NO Presidential recommendation · NO joint sitting · assent OBLIGATORY (24th)

SIMPLE MAJORITY: Arts 2-3 States · Legislative Councils · citizenship · salaries · 5th and 6th Schedules · English in Parliament

SPECIAL MAJORITY: majority of TOTAL membership + 2/3 PRESENT AND VOTING
+ **RATIFICATION BY HALF THE STATES:** President's election · executive power · SC and HCs · legislative distribution · 7th SCHEDULE LISTS · State representation · Art 368 · GST Council

Ratification = SIMPLE majority, ONE-HALF, no time limit, cannot be withdrawn

42nd 1976 = MINI-CONSTITUTION (Preamble words, Fundamental Duties, 5 subjects moved, 6-yr terms, 1971 census freeze, 368(4)-(5))

44th 1978 = CORRECTIVE (5 yrs, ARMED REBELLION, Cabinet's WRITTEN recommendation, Arts 20-21 protected, property to Art 300A, Art 74 proviso)

IR COELHO 2007: 9th Schedule laws after 24 APR 1973 open to BASIC STRUCTURE challenge

10th SCHEDULE: 2/3 MERGER exception · 1/3 SPLIT deleted by 91st · KIHOTO HOLLOHAN = review available

ART 352: WAR · EXTERNAL AGGRESSION · ARMED REBELLION

352: ONE MONTH, SPECIAL MAJORITY, 6 months at a time · LS may revoke by SIMPLE majority · 14-DAY special sitting

ART 358 = ART 19 ONLY, AUTOMATIC, only for WAR/AGGRESSION

ART 359 = REMEDY suspended, by ORDER, NEVER Arts 20 and 21

ADM JABALPUR 1976 · KHANNA'S DISSENT · overruled PUTTASWAMY 2017

THREE National Emergencies: 1962 · 1971 · 1975

ART 356: Governor's report OR OTHERWISE · TWO MONTHS · SIMPLE majority · MAX 3 YEARS

Beyond 1 YEAR: National Emergency in force AND EC certification

President may NOT assume HIGH COURT powers

SR BOMMAI: review available · FLOOR TEST · no dissolution before approval · may restore

ART 365: failure to comply with a Union direction → 356

ART 360: TWO MONTHS · SIMPLE · INDEFINITE · NEVER USED · ONLY route to reduce JUDGES' SALARIES

ONLY A NATIONAL EMERGENCY AFFECTS FUNDAMENTAL RIGHTS

ART 44 UCC: Part IV, NON-JUSTICIABLE, "ENDEAVOUR" · personal law only

SPECIAL MARRIAGE ACT 1954 = optional neutral regime already exists

GOA has one · UTTARAKHAND 2024 · SHAYARA BANO 2017 triple talaq

COURT HAS URGED BUT NEVER DIRECTED A UCC